



Terms of Service & Privacy Policy

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The short version

- **You own your data.** We use it to run your program's dashboards and keep the platform working. We never sell it or use it for ads.
- **Training carries risk.** Striking and conditioning can cause injury. You train at your own risk, and our metrics are performance estimates, not medical advice.
- **Adults only.** Everyone who uses Trench Sports, including every athlete, must be 18 or older. Programs are responsible for getting each athlete's consent.
- **Your data lives in the United States** in an encrypted, access-controlled database. Each program's data is walled off from every other program's.
- **You can leave any time.** Cancel, export or ask us to delete your data. Paid time is not refunded.
- **Disputes go to individual arbitration** under Delaware law, unless you opt out within 30 days.

This summary is for convenience. The full Terms and Privacy Policy below are what legally apply.

Part A Terms of Service — Sections 1–19: eligibility, training risk, billing, API, liability, disputes

Part B Privacy Policy — How we gather data, where it is stored, how we use it, your rights

Part A • Terms of Service

1. Agreeing to these Terms

In short: *Using Trench Sports means you accept these Terms.*

These Terms of Service ("Terms") are a binding agreement between you and Trench Sports AI, Inc. ("Trench Sports", "we", "us"). You accept them when you create an account, connect a sensor, or otherwise use the Services. If you do not agree, do not use the Services.

"Services" means the web platform at trenchsports.ai, our mobile apps, sensor hardware and firmware, the Partner API, our integrations (such as Teamworks AMS), and any related features. Our Privacy Policy (Part B) is part of these Terms.

2. Who can use Trench Sports

In short: *You must be 18 or older. We do not allow minors on Trench Sports.*

- You must be at least 18 years old to create an account or to be added as an athlete. By using the Services, you confirm that you are 18 or older.
- Admins and Coaches must not add, record or upload data about anyone under 18. The Program is responsible for confirming the age of every athlete it adds.

- If we learn that an account or athlete profile belongs to someone under 18, we will close it and delete the related personal data.
- If you accept these Terms for a team, school, club or other organization (a "Program"), you confirm you are authorized to bind it. "You" then includes that Program.
- You may not use the Services if the law forbids you from doing so.

3. Accounts and roles

In short: *Keep your login safe. You are responsible for what happens under your account.*

- **Admin:** owns the Program account, adds coaches and athletes, manages settings and billing, and can see all Program data.
- **Coach:** invited by an Admin. Can view and export performance data for athletes in the Program.
- **Athlete:** can view only their own metrics and session history.

Give us accurate information and keep it current. Do not share your password, impersonate anyone, or let others use your account. Tell us promptly at calvin@trenchsports.ai if you think your account has been accessed without permission.

4. Program responsibilities

In short: *The Program decides whose data goes into Trench Sports, and must have permission to add it.*

Each Program controls the athlete data it adds. The Admin, on the Program's behalf, confirms that:

- each athlete it adds is 18 or older, has been told how their data is used, and has agreed;
- it has any other consents or notices the law requires, including school, league and privacy rules that apply to it;
- the data it enters is accurate, and it has the right to share it with us;
- it will act on athlete requests to access, correct or delete data, or pass them to us.

If a college or university designates us as a "school official" under FERPA, we use student records only to provide the Services, under the school's direction. Schools that need a signed student-data privacy agreement can request one.

5. Training risks and your health

In short: *Physical training can cause injury. Train at your own risk and follow your coach and doctor.*

Assumption of risk and release

Striking, combat and conditioning training carry an inherent risk of injury, including sprains, fractures, concussion and, rarely, serious injury. You choose to take part voluntarily and accept these risks. **TO THE FULLEST EXTENT THE LAW ALLOWS, YOU RELEASE TRENCH SPORTS FROM CLAIMS FOR INJURY ARISING FROM YOUR TRAINING.** This release does not cover injury caused by a defect in our hardware, our gross negligence or willful misconduct, or any claim the law does not allow to be waived.

- Trench Sports is a performance-analytics tool. It is not a medical device and does not diagnose, treat or prevent any injury or condition.

- Consult a physician before starting any training program, and stop if you feel pain, dizziness or discomfort.
- Coaches and Programs are responsible for supervising athletes, and for safe technique, equipment and facilities.

6. Performance metrics are estimates

In short: *Our numbers help you train. They are not exact measurements and should not be the only basis for big decisions.*

Metrics such as the Strength Index, force readings, reaction time, fatigue trends and coaching insights are estimates from sensor data and our own algorithms. Readings vary with sensor placement, bag type, calibration and technique. The Strength Index is a relative score, not a calibrated measure of force in newtons.

We do not guarantee that any metric is accurate, complete or fit for a particular purpose. Do not rely on the Services alone for medical, return-to-play, selection, scholarship or employment decisions.

7. Acceptable use

In short: *Use the platform for athletic training, and don't abuse it.*

You may not:

- harass, harm or discriminate against anyone through the Services;
- reverse engineer, decompile or copy our software or firmware, except where the law expressly allows it;
- access accounts, systems or data you are not authorized to access, or probe or test our security without written permission;
- upload malicious code or disrupt the Services;
- scrape or bulk-extract data, except through the exports or Partner API your plan includes;
- use the Services, or data from them, to build a competing product;
- share credentials or API keys with anyone not authorized to use them;
- use the Services in breach of any law, including privacy law.

8. Sensor hardware

In short: *Use the sensor as designed and don't open it up.*

- Use the hardware only for athletic performance monitoring, and follow our setup and usage guidelines.
- Do not modify, disassemble or tamper with the hardware or its firmware.
- Title stays with Trench Sports until the hardware is paid for in full. Risk of loss or damage passes to you on delivery.
- Mount the sensor and bag securely, check them before each session, and stop using damaged equipment. Keep batteries away from heat and water, and charge them only with approved chargers.
- Any hardware warranty is set out in your purchase agreement. Otherwise, hardware is provided under the disclaimers in Section 15. Where the law does not allow implied warranties to be disclaimed, they are limited to 90 days from delivery.
- We may install firmware updates to fix bugs, improve accuracy or protect security.

9. Plans, billing and cancellation

In short: *Plans are per Program. Cancel any time; paid time is not refunded.*

- Plans are sold per Program in three tiers: Foundation, Analysis and Intelligence. Features, history length and athlete limits vary by tier, as described at purchase or in your order form.
- Fees are billed in advance, monthly or annually, in US dollars, and exclude taxes unless stated otherwise.
- **Plans renew automatically** at the end of each billing period, at the then-current price, until canceled. We send renewal reminders where the law requires.
- You may cancel any time. Access continues to the end of the paid period. We do not give refunds or credits for partial periods, except where the law requires.
- Upgrades take effect right away. Downgrades take effect at the start of the next billing period.
- We will give at least 30 days' notice before changing prices for your plan.
- If payment is late, we may suspend access after notice. Suspended Program data is kept, but hidden, as described in the Privacy Policy.
- A signed order form or agreement with your Program controls if it conflicts with this section.

10. Partner API and third-party integrations

In short: *When you connect another system, you tell us to send it your data. What happens there is up to that system.*

- Intelligence-tier Programs may create API keys and connect third-party systems such as Teamworks AMS.
- API keys are confidential credentials. The Program is responsible for every request made with its keys, and must revoke keys it suspects are compromised.
- When a Program connects a third-party system, it directs us to send its data there. Once data leaves Trench Sports, that system's own terms and privacy policy apply. We are not responsible for third-party systems.
- If a Program moves below the Intelligence tier, API access and integration syncing pause. They resume if the tier is reinstated.
- We may rate-limit, suspend or change the API to protect the Services, and will give reasonable notice of breaking changes where we can.

11. Your data

In short: *You own your data. We only use it to run and improve the Services.*

You and your Program own the performance data and content you create in the Services ("Your Data"). You let us store, copy, process and display Your Data only to run, protect, support and improve the Services, and to send it where your Program tells us. (Legally, this is a worldwide, non-exclusive, royalty-free license.) This license ends when Your Data is deleted, except for backups that expire on their normal schedule.

We may create aggregated, de-identified data that cannot reasonably identify any person or Program. We own that data and may use it to improve our sensors and algorithms, and for research. We never sell Your Data.

12. Our intellectual property

In short: *The platform, sensor, algorithms and brand are ours.*

Trench Sports AI, Inc. owns the Services, including software, firmware, hardware designs, algorithms (including the Strength Index), documentation and trademarks. These Terms give you only a limited, revocable right to use the Services while your account is in good standing. If you send us feedback or ideas, we may use them freely, without paying you or owing you anything.

13. Beta features

We may offer features labeled beta, preview or early access. They are provided as is, may change or stop at any time, and may not be as reliable as the rest of the Services.

14. Suspension and termination

In short: *Either side can end the relationship. We can act fast if the platform or other users are at risk.*

- You may close your account at any time from settings or by emailing us.
- We may suspend or close an account if it breaks these Terms, fails to pay, is involved in fraud, or puts the Services or other users at risk. We will notify you unless the law or a security investigation prevents it.
- After a Program cancels or its account is closed, it has 30 days to request an export of its data. After that, we may delete it. Programs that lapse for non-payment are handled as described in the Privacy Policy, Section 7.
- Sections 5, 6, 9 (for fees already owed), 10, 11, 12 and 15 to 19 continue to apply after termination.

15. Disclaimers

TO THE FULLEST EXTENT ALLOWED BY LAW, THE SERVICES AND HARDWARE ARE PROVIDED "AS IS" AND "AS AVAILABLE". WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, ACCURACY AND NON-INFRINGEMENT. WE DO NOT PROMISE THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR COMPLETELY SECURE, OR THAT DATA WILL NEVER BE LOST.

16. Limitation of liability

TO THE FULLEST EXTENT ALLOWED BY LAW, TRENCH SPORTS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, DATA OR GOODWILL. OUR TOTAL LIABILITY FOR ALL CLAIMS RELATED TO THE SERVICES IS LIMITED TO THE GREATER OF (A) THE AMOUNT YOU PAID US IN THE 12 MONTHS BEFORE THE CLAIM AROSE, OR (B) US\$100.

Some places do not allow these limits. Where that is the case, they apply only as far as the law allows.

17. Indemnification

Each Program, and each adult user for their own conduct, will defend, indemnify and hold harmless Trench Sports and its officers, employees and agents from third-party claims, losses and costs (including reasonable legal fees) arising from:

- misuse of the Services or hardware;

- a breach of these Terms;
- athlete data submitted without the required consent;
- a Program's training activities or supervision of athletes.

This does not apply where the claim is caused by our own gross negligence or willful misconduct.

18. Disputes, arbitration and governing law

In short: *Talk to us first. If that fails, disputes go to individual arbitration, not court. You can opt out.*

- **Informal resolution first.** Before filing a claim, email calvin@trenchsports.ai with "LEGAL NOTICE" in the subject line, and give us 60 days to try to resolve it.
- **Binding arbitration.** Disputes not resolved informally will be settled by binding individual arbitration run by the American Arbitration Association (AAA). Its Consumer Arbitration Rules apply to individuals, and its Commercial Rules apply to Programs. The Federal Arbitration Act governs this section. The arbitration may be held by video. Either party may instead bring an individual claim in small-claims court. Deadlines for bringing a claim are paused during the 60-day informal period.
- **Jury and class waiver.** YOU AND TRENCH SPORTS EACH GIVE UP THE RIGHT TO A JURY TRIAL AND TO TAKE PART IN A CLASS, COLLECTIVE OR REPRESENTATIVE ACTION. If this class waiver is found unenforceable for a claim, that claim will go to court, not arbitration.
- **Opt-out.** You may opt out of arbitration within 30 days of first accepting these Terms. Email us your name, account email and a statement that you opt out of arbitration.
- **Future changes.** Changes to this section do not apply to disputes already pending.
- **Court exceptions.** Either party may seek an injunction in court to protect intellectual property or stop unauthorized access.
- **Governing law.** Delaware law governs these Terms, without regard to conflict-of-law rules. Any court case not subject to arbitration will be heard in the state or federal courts in Delaware.

19. General terms

- **Changes.** We will give at least 14 days' notice, by email and in the app, before material changes take effect. If you keep using the Services after that, you accept the changes. If you do not agree, stop using the Services and close your account.
- **Electronic communications.** You agree to receive notices, agreements and disclosures electronically.
- **App stores.** If you download our app from Apple or Google, their terms also apply to the download. These Terms are between you and Trench Sports only.
- **Entire agreement.** These Terms, the Privacy Policy and any signed order form are the whole agreement between us about the Services.
- **Severability.** If any part of these Terms is unenforceable, the rest still applies.
- **No waiver.** If we do not enforce a right, we have not given it up.
- **Assignment.** You may not transfer these Terms without our written consent. We may transfer them as part of a merger, acquisition or sale of assets.
- **Force majeure.** We are not liable for delays or failures caused by events beyond our reasonable control, such as outages, disasters or labor actions.

- **Notices.** We may send notices by email or in the app. Send legal notices to calvin@trenchsports.ai with "LEGAL NOTICE" in the subject line. We will acknowledge them within 5 business days.

Part B • Privacy Policy

1. Who we are and what this covers

Trench Sports AI, Inc. provides the Services described in the Terms. This policy covers three things:

- how we gather data;
- where we store it;
- how we use and share it.

Your team or school (the Program) decides what athlete data goes into Trench Sports, and we handle that data on its behalf. We are responsible for account data and data about how the app is used.

We do not use third-party advertising, analytics SDKs, tracking pixels or data brokers.

2. How we gather data

In short: From what you and your Program enter, from the sensor during sessions, and from limited technical data the app creates.

Data	Examples	How we get it
Account	Name, email, password, role, Program	Signup and invite forms. Passwords are handled by our authentication provider and never stored in plain text
Athlete profile	Name, email, date of birth, height, weight, sport, position, team, city and state	Entered by a Coach or Admin, or imported from a roster file
Session performance	Force readings, timing, impact location, angle, reaction time, acceleration, Strength Index, heatmaps, raw sensor data	Recorded by the Bluetooth sensor and uploaded by the app
Device	Sensor ID, firmware version, app version, platform	Read from the sensor and app when they connect
Location	GPS latitude, longitude and accuracy at session start	Mobile app, only with your device's location permission. You can turn it off in Settings
Usage and errors	Screens viewed, app events, error reports linked to your account, Program and device	Our own built-in telemetry. Error reports are scrubbed of athlete performance data
On your device	Sign-in session, preferences, sensor pairing, sessions waiting to upload	Stored in your browser or app (local storage)
Messages	Emails and support requests you send us	Email

Sessions recorded before sign-in. The mobile app can record a session before anyone signs in. That session's performance data is stored with the sensor's device ID and, if permitted, location, but no name or account, until an account claims it.

What we don't collect. We do not collect:

- biometric identifiers such as face or fingerprint scans;
- video or photos of sessions;
- payment card numbers;
- your contacts;
- data from other apps on your device.

3. Where data is stored

In short: *In a managed database in the United States, encrypted and walled off per Program.*

Location	What's there	How it's protected
Supabase database and authentication (United States)	Accounts, profiles, athletes, teams, sessions, strike data, summaries, devices, usage data	Encrypted in transit (TLS) and at rest (AES-256). Row-level security keeps each Program's data separate. Plan limits are enforced in the database
Encrypted secret storage	Login credentials for integrations such as Teamworks AMS (Intelligence tier)	Stored as encrypted secrets that app users and API callers cannot read
Vercel	The web app and Partner API code; short-lived request logs	Does not hold our customer database. All traffic is served over HTTPS
Your device	Sign-in session, preferences, sensor pairing, sessions waiting to upload	Stays on your device. Cleared when you sign out or clear app data. Queued sessions are removed once uploaded

Passwords are hashed by our authentication provider. We store API keys and invite tokens only as one-way hashes, so they cannot be recovered. A small number of authorized Trench Sports staff can access production data, and only for support, security and operations.

The Services are operated from the United States. If you use them from elsewhere, your data will be transferred to and processed in the United States.

No system is perfectly secure, and we cannot guarantee absolute security. If a breach affects your personal data, we will notify affected Programs and individuals as the law requires.

4. How we use data

In short: To run your dashboards, keep the platform working and secure, and support you.

Purpose	Data used
Sign you in and control what each role can see	Account, role, Program
Build dashboards: summaries, heatmaps, force trends, Strength Index, leaderboards, fatigue and trend insights (features vary by tier)	Session performance, athlete profile
Compare and rank athletes within a Program	Session performance, team and position
Generate coaching insight cards with our own rules engine. No data is sent to outside AI providers	Session performance
Run the exports and integrations a Program turns on: CSV and raw exports, Partner API, Teamworks AMS	The Program's session and athlete data, sent only where the Program directs
Pair sensors, deliver firmware updates, and match offline sessions to the right athlete	Device, on-device data
Record where sessions take place, and link unclaimed sessions to the right sensor	Location
Fix bugs, monitor reliability, prevent abuse and plan features	Usage and errors
Answer support requests and send account emails such as invites and password resets	Account, messages
Meet legal obligations and enforce our Terms	Any data needed for that purpose

Product improvement and AI. We may use aggregated, de-identified statistics to improve our sensors and algorithms. We do not train AI models on data that identifies athletes. Before we change this, we will update this policy, give 14 days' notice, and offer a way to opt out.

5. Who can see and receive data

- **Within your Program.** Athletes see only their own data. Coaches and Admins see athletes in their own Program. No Program can see another Program's data.
- **Service providers.** Companies that host and run the platform, such as Supabase (database, authentication and account email) and Vercel (hosting), plus providers we use for payments, email and support. They may use data only to provide services to us.
- **Destinations your Program chooses.** For example, Teamworks AMS or a partner using your Program's API key.
- **Legal reasons.** When the law or valid legal process requires it, or to protect someone's safety. Where we are allowed to, we will tell you first.
- **Business transfers.** If we are involved in a merger, acquisition or sale of assets, data may transfer. We will require the buyer to honor this policy.

We don't sell your data

Trench Sports does not sell personal data or share it for targeted advertising, as those terms are defined under California and other U.S. state privacy laws.

6. Adults only: no minors

- Trench Sports is only for people 18 and older. We do not knowingly collect personal information from anyone under 18.
- Programs must not add athletes under 18.
- If we learn we have collected data from someone under 18, we will delete it promptly. If you believe this has happened, email us and we will act on it.

7. How long we keep data

Situation	What happens
Active account	We keep data for as long as the account is active
Program lapsed or suspended	Data is kept but hidden until the plan is reinstated, or deleted on request. We may delete data 12 months after a Program lapses, after notice
Program cancels or account closed	The Program may request an export within 30 days. After that, we may delete the data
Verified deletion request	For your own account, we delete personal data within 30 days. For athlete data, we act on the Program's instructions and pass your request to it. Copies in backups expire on their normal schedule
De-identified statistics	May be kept indefinitely, because they cannot identify anyone
Legal holds	We may keep records longer when the law requires it

8. Your choices and rights

Depending on where you live, you may have the right to:

- access your data or get a copy of it (CSV or JSON);
- correct inaccurate data;
- delete your data;
- withdraw consent;
- turn off location in the app's Settings.

Athletes can also ask their Program Admin, who can act on many requests directly. Email calvin@trenchsports.ai to make a request. An authorized agent may also make a request for you. We will verify your identity, respond within the time the law requires, and not charge you. If we deny a request, you may appeal by replying to our decision. We will not treat you differently for exercising your rights.

Our Services do not respond to browser "Do Not Track" signals, because we do not track you across other websites.

9. Changes and contact

We will post updates to this policy with a new effective date. We will give at least 14 days' notice, by email and in the app, before material changes take effect.

To ask a question, make a request or report a security issue, email calvin@trenchsports.ai. For security issues, put "SECURITY" in the subject line. Trench Sports AI, Inc., Delaware, United States.